

**UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,  
*Plaintiff,*

v.

KEITH ELLISON, in his official  
capacity as Attorney General of  
the State of Minnesota,  
*Defendant.*

**Case No. 26-CV-2594 (LMP/DJF)**

**EXHIBIT 2: CONFERRAL CHAIN  
(JUNE 10-12, 2026)**

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**Re:Kirchner v. Ellison 26-CV-02594 Meet and Confer****legal** <legal@lawsofexistence.com >

2 emails

**Joseph Kirchner** <legal@lawsofexistence.com >

Fri, 12 Jun 2026 12:48:18 PM -0500

To "Matthew McGuire"&lt;Matthew.McGuire@ag.state.mn.us&gt;

Cc "Alexandra Roux"&lt;Alexandra.Roux@ag.state.mn.us&gt;

Mr. McGuire,

I am in receipt of your email of June 10, 2026. I decline to withdraw the Complaint. This email responds for the conferral record contemplated by D. Minn. L.R. 7.1.

This case turns on a single, answerable question: identify the statute, session law, or other legislative act that repeals, withholds, or limits the investigative authority granted to the Attorney General in mandatory terms by Minn. Stat. § 8.31, Subd. 1 and § 8.32, Subd. 2(1) — such that the February 26, 2026 statement that the Legislature "did not delegate any such authority to this Office, nor did it delegate the authority to investigate criminal matters to this Office" is a correct statement of Minnesota law.

If your office identifies that authority, I will promptly and in good faith reassess the necessity of this action, up to and including voluntary dismissal under Rule 41(a). I make that commitment in writing here.

Such authority should not require litigation to obtain. A Minnesota citizen whose criminal referral is denied on the stated ground that the Legislature "did not delegate" investigative authority is entitled to the citation supporting that ground, freely provided, at the time of denial. If the basis exists, supplying it costs one sentence and may end this case. If it does not exist, your office's demand asks me to abandon claims it cannot answer.

The question has been presented to your office, or answered by its silence, on each of the following occasions:

- (1) February 26, 2026 — the denial letter asserted the disclaimer and cited no statute supporting it;
- (2) Continuously — the Attorney General's official website maintains the same assertion, without citation;
- (3) March 6, 2026 — my meet-and-confer response in No. 0:26-cv-00726 directed your office to §§ 8.01 and 8.31 and invited contrary statutory text; your March 9 reply identified none;
- (4) March 9, 2026 — your office's 16-page Memorandum in Support of its Motion to Dismiss

addressed neither § 8.01 nor § 8.31 and cited no withholding statute;

(5) May 13–14, 2026 — my letter and email transmittal (on which you were a named recipient, together with the Governor, his General Counsel and Chief of Staff, and eleven legislators) expressly offered "all parties addressed herein the opportunity to provide any single statutory authority which repeals the 121-year-long legislative history" — enclosing the consolidated statutory and historical analysis and the March 12, 2025 Senate hearing transcript, with hard copies sent by certified mail, return receipts on file. No recipient has responded;

(6) May 27, 2026 — the served Complaint pleads this record at ¶ 45 and alleges that the burden of identifying a repealing act has not been discharged in any forum.

Your June 10 email — which demands withdrawal and threatens sanctions while again citing no statute — is now the seventh.

The premise of your email — that I "cannot maintain two active lawsuits" — mischaracterizes the posture. No. 0:26-cv-00726 was dismissed on March 30, 2026 and is not pending in any district court; only the appeal pends, and it is procedural in scope. The opening brief filed May 12 expressly disclaims further proceedings in the original action and seeks only vacatur and a determination of the dismissal's preclusive status under *Semtek Int'l Inc. v. Lockheed Martin Corp.*, 531 U.S. 497, 505-06 (2001), and *Michaelis v. Nebraska State Bar Ass'n*, 717 F.2d 437, 439 (8th Cir. 1983) (per curiam). The Complaint discloses the prior action, the dismissal, and the appeal on its face (¶¶ 4-5). A Rule 8(a)(2) dismissal that adjudicated no claim on the merits precludes nothing under *Semtek*, and under *Michaelis* the required disposition was dismissal without prejudice — the disposition that invites exactly this refiling.

I would also note that the Complaint conforms to your office's own stated position. Your March 6, 2026 meet-and-confer email described the prior complaint's defect as allegations that "primarily concern the actions of the federal government and do not implicate AG Ellison." The refiled Complaint contains only claims arising from the conduct of the Attorney General's office: the February 26 denial letter, the website disclaimer, and selective exercise of Chapter 8 authority. No federal party is required and no relief concerning any federal actor is sought.

The March 30 order stated that I "obviously lack[] standing to seek virtually all of the relief" requested in a superseded, much broader pleading — without analysis, and without addressing *Bond v. United States*, 564 U.S. 211 (2011), or the Chapter 8 claims. "Virtually all" is not "all"; the qualifier conceded a remainder, and the refiled Complaint presents that remainder. Paragraph 13 pleads injury in fact, causation, and redressability element by element. An unanalyzed remark about a pleading that no longer exists is not a finding as to a complaint that did not then exist.

Your email states that it "serves as a safe harbor notice pursuant to Fed. R. Civ. P. 11." It does not. Rule 11(c)(2) requires service of the motion itself, followed by the 21-day period; demands conveyed by email or letter do not satisfy the rule. *Gordon v. Unifund CCR Partners*, 345 F.3d 1028, 1029-30 (8th Cir. 2003) (reversing sanctions where the movant conveyed its Rule 11 demand by email and warning letter but never served the separate motion the rule requires); see also *VanDanacker v. Main Motor Sales, Co.*, 109 F. Supp. 2d 1045, 1055 (D. Minn. 2000) (rejecting Rule 11 sanctions where defendants sent only warning letters to the nonmovant's counsel). I reserve all rights with respect to that procedure. I would

add that Rule 11(b) applies with equal force to any forthcoming representation by your office that the February 26, 2026 disclaimer has support in Minnesota law.

When your office filed its meet-and-confer statement in the prior action, my substantive March 6 response was not reflected in it. To ensure an accurate record here, I request that any L.R. 7.1 statement accompanying a motion in this action attach this exchange in full. I will otherwise place it before the Court myself.

I remain willing to confer by telephone or in writing, and I remain willing — as I wrote on March 6 and repeat now — to discuss cooperation in the interest of Minnesota citizens.

Respectfully,

Joseph Kirchner  
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Edina, MN 55435  
(612) 552-2122  
[legal@lawsofexistence.com](mailto:legal@lawsofexistence.com)  
[www.lawsofexistence.com](http://www.lawsofexistence.com)

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From: Matthew McGuire <[Matthew.McGuire@ag.state.mn.us](mailto:Matthew.McGuire@ag.state.mn.us)>  
To: "[legal@lawsofexistence.com](mailto:legal@lawsofexistence.com)" <[legal@lawsofexistence.com](mailto:legal@lawsofexistence.com)>  
Cc: "Alexandra Roux" <[Alexandra.Roux@ag.state.mn.us](mailto:Alexandra.Roux@ag.state.mn.us)>  
Date: Wed, 10 Jun 2026 10:36:55 -0500  
Subject: Kirchner v. Ellison 26-CV-02594 Meet and Confer

Mr. Kirchner,

We are in receipt of your newly filed complaint with case number 26-CV-02594. I am writing to respectfully request that you withdraw this complaint.

This complaint obviously violates the rule against duplicative litigation. It is nearly identical to your previous lawsuit that is being appealed as it arises out of the same course of conduct and contains many of the same claims. You cannot maintain two active lawsuits that arise out of the same course of conduct. Chief Judge Schlitz has warned you that filing additional frivolous complaints may result in sanctions. To avoid that outcome, I am asking you to withdraw this lawsuit. This email serves as a safe harbor notice pursuant to Fed. R. Civ. P. 11.

I am preparing a motion to dismiss the complaint on the similar grounds as my previous lawsuit. Chief Judge Schlitz has already found that you lack standing to seek virtually all of the relief you are seeking. Please withdraw your lawsuit.

Best regards,



**Matthew A. McGuire**